

does not mean that the mediation was reasonably necessary to the litigation.

The fallacy of “*post hoc, ergo propter hoc*” (lat. “after this, therefore because of this.”) applies here. Just because something came after does not mean it caused it. Merely because the mediation was followed in time by the Plaintiffs’ dismissal of the case does not mean the mediation caused the dismissal, or was reasonably necessary to the litigation. The court would only be speculating that the mediation was reasonably necessary to the litigation on the record here.

As to Line 15, fees of \$220 for servicing the gate, the motion to strike is **granted**. The Defendants’ invoice, “for a service call on the gate,” to “reset the limit switches on the double swing gate,” appear to be ordinary service work or repair work. It does not appear to be a litigation driven inspection cost. That it may have been initiated by the Defendants in response to Plaintiff’s inspection of the gate as “proactive servicing,” as described by the Defendants, does not make it a litigation cost. It does not appear to be a mere “inspection,” rather, it appears to be regular servicing of the gate.

In summary, as to Line 13, Models enlargements, and photocopies of exhibits: \$2,459.57, the motion to strike or tax costs is **denied**. As to Line 15, Mediation fees: \$5,400, the motion to strike is **granted**. As to Line 15, fees of \$220 for servicing the gate, the motion to strike is **granted**.

3. 9:00 AM CASE NUMBER: C23-02656
CASE NAME: MARIA ANGUIANO VS. JOHN BALQUIST
HEARING IN RE: JOINDER OF MOTION FOR TERMINATING SANCTIONS AGAINST PLAINTIFF
ALEJANDRA CHAVEZ ORTIZ
FILED BY: BALQUIST, JOHN
TENTATIVE RULING:

The unopposed motion of Defendants Bethel Islands Estates MHC, LLC and Monte Christo Communities, LLC (Defendants) for Terminating Sanctions against Plaintiff Alejandra Chavez Ortiz is granted. Plaintiff Chavez Ortiz’s Complaint against Defendants is dismissed with prejudice in its entirety.

4. 9:00 AM CASE NUMBER: C23-02945
CASE NAME: ARIANA MOORE VS. DOES 1-30, INCLUSIVE
HEARING ON SUMMARY MOTION JUDGEMENT HEARING / CONT'D FROM 5/1/26 PER TR
FILED BY: BIKRAMJIT S. RANDHAWA AS TRUSTEE OF THE RANDHAWA REVOCABLE TRUST, DATED
OCTOBER
TENTATIVE RULING:

Before the Court is a motion for summary judgment, or in the alternative summary adjudication of issues filed by defendants Bikram Randhawa, Schlatter Associates, Inc., Brigitte Schlatter, Bikramjit S. Randhawa as Trustee of the Randhawa Revocable Trust Dated October 2, 2015, and Dalbir K. Randhawa as Trustee of the Randhawa Revocable Trust Dated October 2, 2015. For the reasons set forth, (a) the motion for summary judgment is **denied**; (b) the motion for summary adjudication of the second, third, eighth, ninth, and eleventh causes of action (Issues 1 (as to 2nd C/A), 3, 4, 8, 9, 10, 11, and 12) against defendants Brigitte Schlatter and Schlatter Associates, Inc. is **granted**; (c) the motion for summary adjudication of issues as to the first, fourth, fifth, sixth, and seventh causes of action (Issues 1, 5, 6, and 7) against defendants Brigitte Schlatter and Schlatter Associates, Inc. is **denied**; and (d) the motion for summary adjudication of all 11 causes of action (Issues 1 through 12) against defendants Bikram Randhawa, Bikramjit S. Randhawa as Trustee of the Randhawa Revocable Trust Dated October 2, 2015, and Dalbir K. Randhawa as Trustee of the Randhawa Revocable Trust Dated October 2, 2015 is **denied**.

Background

Plaintiff's complaint alleges she was a tenant in Unit D of 5407 Morrow Drive (the "Unit"), which is part of a four-building, 31-unit residential apartment complex owned or controlled by the defendants in San Pablo (the "Property"). When she became a tenant in May 2020, she entered into her rental agreement with defendant Megem, LLC, the owner of the building at that time. (Compl. ¶ 9 and Exh. A.) The complaint names defendants Megem, LLC, Bella Vista Property Solutions LP and Community Capital Management, Inc. (collectively those defendants are referred to in this ruling as the "Megem Defendants" for convenience). Plaintiff has added as "Doe" defendants Bikram Randhawa, Schlatter Associates, Inc., Brigitte Schatter, Bikramjit S. Randhawa as Trustee of the Randhawa Revocable Trust Dated October 2, 2015, and Dalbir K. Randhawa

as Trustee of the Randhawa Revocable Trust Dated October 2, 2015 (collectively sometimes referred to as the "moving parties"). For convenience, the Court refers to defendants Bikram Randhawa, Bikramjit S. Randhawa as Trustee of the Randhawa Revocable Trust Dated October 2, 2015, and Dalbir K. Randhawa as Trustee of the Randhawa Revocable Trust Dated October 2, 2015 collectively as the "Randhawa Defendants," and defendants Brigitte Schlatter and Schlatter Associates, Inc. as the "Schlatter Defendants."

Plaintiff alleges there were substantial defects in the condition of the property, including rodents and bugs, mold, defective plumbing, water leak intrusions, cracks in walls, dangerous and defective floors, and general lack of maintenance of which she alleges Defendants had notice and which were longstanding and continued without repair. (Compl. ¶¶ 11-14.) She alleges on September 25, 2023, she tripped over a dangerous and defective floor in her kitchen and suffered personal injuries, though she alleges she informed Defendants of the dangerous condition and the damaged floor was not corrected or repaired. (Compl. ¶ 15.)

Plaintiff entered into a settlement with the Megem Defendants which the Court previously approved as a good faith settlement. (2/7/2025 Min. Order.) The moving parties now move for summary judgment, or alternatively, for summary adjudication of issues. Plaintiff opposes the motion.

Legal Standards for Ruling on Defendants' Motion

Under Code of Civil Procedure § 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant meets this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue of fact exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. §

437c(p)(2).)

Motions for summary adjudication under Code of Civil Procedure § 437c(f)(1) "are 'procedurally identical' to summary judgment motions." [Citation.]" (*Duffey v. Tender Heart Home Care Agency, LLC* (2019) 31 Cal.App.5th 232, 240-241.) A motion for summary adjudication under Code of Civil Procedure § 437c(f)(1) can only be granted "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c(f)(1).) (See also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

The issues to be considered on a motion for summary judgment or summary adjudication are defined by the pleadings. (*Anderson v. Fitness Internat., Inc.* (2016) 4 Cal.App.5th 867, 876; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161 ["The complaint measures the materiality of the facts tendered in a defendant's challenge to the plaintiff's cause of action."].) The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen, supra*, 159 Cal.App.4th at 1483.)

Request for Judicial Notice

Moving Defendants ask the Court to take judicial notice of two recorded grant deeds pertaining to the Property (Exhs. 1 and 4 to Defs. App. of Exhs. ("AOE")),

and of a complaint filed by Plaintiff in another action, *Ariana Moore v. Benjamin Blair dba BB's Laundromat*, Contra Costa County Superior Court, Case No. C23-03119 ("Moore-Blair Action") (Defs. AOE Exh. 9). The Court grants the unopposed requests, subject to the limitations on the scope of judicial notice applicable to the documents in question. (Evid. Code §§ 452(c) and (d); *Linda Vista Village San Diego Homeowners Assn., Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 184 ["Judicial notice may be taken of 'the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face.' [Citation omitted.]"]; *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to truth or interpretation of the content of the filed pleadings to the extent reasonably disputable].)

Procedural Issues – Overlength Memorandum and Evidentiary Objections

California Rule of Court, Rule 3.1113(d) provides a 20-page limit for a memorandum in support of a motion for summary judgment. Moving parties' memorandum substantially exceeds that page length (27 pages), and they did not request leave to file a longer memorandum under Rule 3.1113(e). The Court has discretion to consider an overlong brief. (Cal. R. Ct., Rule 3.1113(g) ["A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper."]; *Rancho Mirage Homeowners Association v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [court discretion to consider late brief].) Plaintiff has filed a full substantive response to all the issues addressed in the moving memorandum without any objection to the overlength brief. The Court will consider the overlong brief but cautions counsel for moving parties that it expects compliance with the applicable court rules in future filings.

Plaintiff has filed evidentiary objections to evidence offered by Defendants in support of their motion, consistent with California Rule of Court, Rule 3.1354. The rules applicable to motions for summary judgment and summary adjudication provide that the response to the separate statement should

indicate if the opposing party has made evidentiary objections to the evidence supporting an undisputed material fact stated in the moving party's separate statement, but the evidentiary objection itself must be made in a separate document and be directed to the specific item of evidence subject to the objection. (Cal. R. Ct., Rules 3.1350 and 3.1354.) The Court does not consider evidentiary objections stated in Plaintiff's Response to the moving parties' separate statement. (See, e.g., UMF 42 and Pl. Resp. to UMF 42.)

Supplemental Briefing as to Schlatter Defendants and Their Nonliability as A Matter of Law on the Second, Third, Eighth, Ninth and Eleventh Causes of Action

The Court on its own motion continued the May 1, 2026 hearing on the motion to this date and requested that the parties provide supplemental briefing. In the Court's May 1, 2026 tentative ruling, which was uncontested and became the order of the Court, the Court raised legal issues as to the undisputed facts before the Court that Brigitte Schlatter, the principal of Schlatter Associates, Inc., and Schlatter Associates, Inc. are only property managers and agents for the property owners, the Randhawa Defendants. The Court asked the parties to provide supplemental briefs, and supplemental evidence if they chose, to address whether the Schlatter Defendants had no liability as a matter of law on the second, third, eighth, ninth, and eleventh causes of action based on the authorities cited in the May 1, 2026 tentative ruling.

On May 8, 2026, the parties timely filed supplemental briefs. Plaintiff's supplemental opposition "submits" on the Court's May 1, 2026 tentative ruling, and Plaintiff has conceded that the Schlatter Defendants "are not liable for Causes of Action #2, 3, 8, 9, and 11 only." (Pl. Suppl. Opp. p. 1.) The Court's ruling in this tentative ruling as to those defendants on those five causes of action is based on the May 1, 2026 tentative ruling adopted by the Court, and Plaintiff's supplemental opposition.

Analysis

Moving parties seek summary judgment as to the complaint in its entirety, or alternatively, summary adjudication of 12 separate issues addressing the 11 causes of action alleged against them. The motion is supported by a Separate

Statement ("SS") of Undisputed Material Facts ("UMFs") listing the 12 issues from the motion to which Plaintiff has responded (Pl. Resp. to UMFs). Plaintiff has also filed a separate document titled Plaintiff's Separate Statement which lists additional facts ("AFs") which Plaintiff contends raise factual disputes precluding summary judgment and summary adjudication of the 12 issues. Moving parties have filed a Response to Plaintiff's Separate Statement of AFs.

All of Plaintiff's 11 causes of action are alleged against all defendants, including both the Randhawa Defendants, the owners of the Property through their Trust, and the Schlatter Defendants, the managers of the Property since the Randhawas purchased the Property. (Pl. AF 28; Schlatter Decl. ¶¶ 3, 5.) Schlatter is the principal and sole owner of Schlatter Associates, Inc. (Schlatter Decl. ¶ 3.)

A. Undisputed Material Facts

Only the most basic facts out of which the parties' disputes arise are listed by Plaintiff as undisputed. She admits her tenancy in the Unit D commenced in May 2020 and is reflected in a written lease agreement between Plaintiff and Megem, LLC, the former owner of the Property. (UMFs 1-3.) She admits Bikramjit S. Randhawa and Dalbir K. Randhawa as Trustees of the Randhawa Revocable Trust Dated October 2, 2015 purchased the Property from Megem, LLC. (UMF 5.) Plaintiff does not dispute that she sent an email to Defendants on October 15, 2023, listing certain defective conditions in her apartment, which included mold, hazardous floor in the kitchen, and leaks in the bathroom toilet and shower head. (UMFs 18, 19.) It is also undisputed that Plaintiff sent an email on June 4, 2024 stating, among other things, she "still" had mold, the shower sprays and leaks, her kitchen sink "still has a leak, and raising "false" accusations by her neighbor of marijuana use. (UMF 23.)

Among other claims asserted by Plaintiff in the complaint, Plaintiff alleges she was injured tripping over the damaged floor in her kitchen on September 25, 2023. (Compl. ¶ 15.) It is undisputed that prior to the alleged September 25, 2023 fall in her kitchen, Plaintiff sustained an ankle injury in a separate slip-and-fall at an offsite laundromat on September 4, 2023, and she was wearing a boot on September 25, 2023 when she alleges she fell in her kitchen. (UMF 10.) She alleges the boot caught on a hole in the floor, causing her to fall. (UMF 11.)

Plaintiff crossed the threshold whenever she went into her kitchen. (UMF 12.)

Plaintiff admits that Randhawa has not terminated her tenancy and that she remains in possession of her Unit. (UMFs 31, 33.) She does not raise a genuine dispute of fact that Randhawa has not filed an unlawful detainer action against her. (UMF 32; Pl. Resp. to UMF 32.) Moving Defendants discovered that the prior owner of the Property had increased Plaintiff's \$1,895.00 rent by 10% to \$2,084.50, which the Moving Defendants believed was erroneous. (UMF 37.) Plaintiff has also not raised a genuine dispute regarding whether her rent as of December 2, 2024 was \$2,259.74 or \$2,275 based on the October 7, 2024 email from Randhawa's counsel to counsel for Plaintiff, because defendants explain the \$2,275 rent was adjusted in the December 2, 2024 letter from counsel. (See UMFs 40, 41; Pl. Resp. to UMFs 40, 41.) It is unclear whether any dispute regarding UMFs 40 or 41 is material in any event.

UMF 27 is not genuinely disputed; the evidence cited in support of that UMF includes the three-day notice to quit or pay rent dated July 6, 2024 but UMF 27 apparently mistakenly omitted that date in the list of notices. The Court also finds that Plaintiff has not raised a genuine dispute as to UMF 28 for the same reasons as UMF 26, and because the Court has overruled Plaintiff's objection to the rent ledger. (See Rulings on Evid. Objs. below.)

Plaintiff has not genuinely disputed the stated basis for the three-day notices to perform conditions or quit which are the subject of UMFs 29 and 30. (Pl. Resp. to UMFs 29, 30.) Plaintiff, however, disputes whether there was in fact just cause for issuance of those notices based on her alleged smoking, specifically marijuana smoking at the Property, and failing to clean up after her dog. (Pl. Resp. to UMFs 29, 30 [misciting Moore Decl. ¶ 15, presumably intended to refer to Moore Decl. ¶ 16 ["During my tenancy at the Property, I have not smoked any substances, including but not limited to marijuana, while at the Property. I have also picked up after Prince, my dog, when he pooped during his walk at the Property."].) She does not address other grounds stated in the July 15, 2025 notice to perform or quit, including allowing her dog to wander on the Property off-leash, storage of a dirty pet bed in the walkway next to her door, and having a pet cat without owner's prior approval. (UMFs 29, 30 and Defs. Exh. 24; Pl. Resp. to UMFs 29, 30 and Moore Decl. ¶ 16.)

B. Facts Genuinely Disputed by Plaintiff

The Court finds that a number of the UMFs are genuinely disputed by the evidence presented by Plaintiff in opposition to the motion.

There is some genuine dispute about the extent to which the Randhawa Defendants had information regarding at least some issues with Plaintiff's Unit that had been subject to her complaints, including the cracks in the walls and defective flooring in particular which the inspection company noted required repair in its June 2023 inspection report prepared for Randhawa. (UMFs 6, 7 and Pl. Resp. to UMFs 6, 7 citing portions of Hicks DT and Pinza Decl. ¶¶ 5, 6.) (*See also* Defs. Exh. 5 [Giant Jims Inspection Services Report dated June 23, 2023, pp. 12 and 48 [flooring], 50 and 51 [cracks in ceiling and walls]; Pl. AF 17 [Randhawa obtained a copy of the Giant Jims report on June 28, 2023].) The fact that the Pinza Group may have turned over to the buyer or buyer's agent documents in its possession regarding the Property as part of the sale does not demonstrate that emails between Plaintiff and the property management company managing the Property for the former owner Megem, LLC were turned over before the sale closed. (Pinza Decl. ¶¶ 5, 6.) Nothing in the Pinza Declaration identifies or describes the nature or content of any documents in its possession that were turned over, and the Court has sustained Plaintiff's evidentiary objection to the Pinza Declaration to the extent Pinza purports to declare that Megem, LLC turned over documents to Randhawa or his agent before the sale closed, documents which are similarly not identified or described. (*See also* Rulings on Evid. Objs. below.)

UMF 17, that Plaintiff did not report any complaints about her Unit until her October 15, 2023 email, is genuinely disputed by Moore's Declaration, though Moore cannot rely on her responses to special interrogatories propounded by defendant to raise a dispute. (Pl. Resp. to UMF 17 [Moore Decl. ¶ 6, stating "On August 23, 2023, I made direct complaints to Bikram Randhawa, when he came to the Property to introduce himself as the new landlord. Specifically, I complained about mold/mildew, roaches and rodents, defective plumbing, cracks in the walls, water leaks, mailbox issues, dangerous, dirty and unkept floors, defective flooring, lack of hot water, general dilapidation and lack of maintenance."].) (*But see* Code Civ. Proc. § 2023.410 ["At the trial or any other

hearing in the action, so far as admissible under the rules of evidence, the propounding party or any party other than the responding party may use any answer or part of an answer to an interrogatory only against the responding party." (Emphasis added.); *Bayramoglu v. Nationstar Mortgage LLC* (2020) 51 Cal.App.5th 726, 740; *Great American Insurance Companies v. Gordon Trucking, Inc.* (2008) 165 Cal.App.4th 445, 450.)

Plaintiff has also genuinely disputed UMFs 15 and 16 that defendants were not notified of any complaint about the threshold and the dangerous condition of Plaintiff's kitchen floor until after Plaintiff's alleged fall on September 25, 2023. (UMFs 15, 16 and Pl. Resp. to UMFs 15, 16 citing Moore Decl. ¶ 6 and Giant Jims Inspection PMQ Hicks DT regarding flooring in her Unit needing repair.) Those UMFs are disputed, without consideration of Plaintiff's responses to the special interrogatories. (See also Pl. AF 17 [Randhawa obtained a copy of the Giant Jims Inspection Report on June 28, 2023].)

Plaintiff has also genuinely disputed that defendants responded to the complaints made in her October 15, 2023 email within a reasonable time and that she made no complaints regarding her Unit between October 23, 2023 and June 4, 2024. (UMFs 20, 21, 22 and Pl. Resp. to UMFs 20, 21, and 22 [citing Moore Decl. ¶¶ 7 and 8 ["The specific issues brought up in my October 15, 2023 email were not resolved within a reasonable time. In particular, the recurrent problems with mold in the Unit, leaks in the bathroom and a rusted/broken spout diverted in the bathtub remained unrepaired as of June 4, 2024, which is almost 8 months later and continue to this very day. [¶] I orally complained to Defendants Bikram Randhawa and Brigitte Schlatter several times about issues in my Unit between October 23, 2023 and June 4, 2024."].) (See also UMF 23 [citing Moore email of June 4, 2024 referring to "still" having back mold and later in the email shower spraying and leaking].)

Plaintiff has also genuinely disputed UMF 25 regarding defendants' notice of various defects such as "rodents/insects," dangerous, unkempt and dirty floors, and cracks in walls, affecting Plaintiff's Unit by the Moore Declaration and other cited evidence, other than Plaintiff's responses to the defendants' special interrogatories. (UMF 25; Pl. Resp. to UMF 25.) Indeed, Defendants' Exhibit 28, the City of San Pablo inspection report based on its August 14, 2023 inspection

of the Property (though the face of the report shows "report sent October 10, 2023") lists "Required Actions Not Requiring Permit" for Plaintiff's Unit, including "remove mold/mildew and seal perimeter of bathtub to prevent water intrusion into wall cavities at bathtub area" and "repair tripping hazard at kitchen floor; cracked and damaged linoleum; repair and/or replace." (Defs. Exh. 28, page 5 of 15 Item f for Unit D.) This evidence offered by the moving parties itself raises a triable issue as to whether the inspections of the Unit conducted by Giant Jims for Randhawa in June 2023 (a report which he received on June 28, 2023) and August 2023 (when Randhawa visited the Unit on August 23, 2023 after he became the owner and when Moore contends she informed him of the floor damage) provided the Randhawa Defendants at a minimum with notice of the plumbing problems she cited and the dangerous condition of her floor, which she contends caused her to trip and fall on September 25, 2023.

Defendants contend that the items included in the Giant Jims report pertaining to Plaintiff's Unit were only placed in the "repair" category and not listed as a "major concern" or "safety issue" in that report. Defendants cite Giant Jims' explanation of those categories in the report: (a) "MAJOR CONCERN: a system or component, which is considered significantly deficient or is unsafe. Significant deficiencies need to be corrected and, except for some safety items, are likely to involve significant expense."; (b) "SAFETY ISSUE: denotes a condition that is unsafe and in need of prompt attention."; and (c) "REPAIR: denotes a system or component which is missing or which needs corrective action to assure proper and reliable function." (Defs. Exh. 5 p. 4 of 60 [emphasis added].) That section of the report also contends the following cautionary language: "This report is not a warranty and this firm does not warrant that this report will be accepted as written by all parties to the transaction. Clients are cautioned that trade professionals will not always agree with these assessments. Some may see an issue as more serious than described here, while others may consider an issue less serious or even non-existent. That is because these conventions are the writer's subjective assessment only, and are based on his or her own training and experiences. For that reason this firm recommends that clients always obtain estimates for repairs from their own contractor, not those chosen by a seller or a real estate agent, and be sure to

obtain a second opinion concerning all costs and proposed repairs." (Defs. Exh. 5, p. 4 of 60 [Italics omitted, underscoring added].)

The report includes a "Summary of Deficiencies" section which states in part "Note: This analysis is not meant to be technically exhaustive but rather to highlight areas where repairs are needed or areas of long term future concern relating to maintenance and operation. [¶] This summary lists items taken from the main report that we feel need immediate attention or consideration. It is entirely the customer's decision whether or not to include additional items from the main report that they may have concerns about." (Defs. Exh. 5, p. 5 of 60 [emphasis added].) Among the items included in the Summary of Deficiencies under Section 10: Building Interior denoted as "Repair" in red lettering are the following three items for Plaintiff's Unit: (1) "the vinyl floor in the bathroom is damaged and needs replacement. We recommend that a flooring contractor be contacted for repairs."; (2) "The linoleum in units 5407-D, 5411-K kitchen is damaged. Repair and or replacement are advised."; and (3) "The carpets in unit 5407-D, 5411-B, and D are very dirty. We recommend replacement of the carpets." (Defs. Exh. 5, p. 12 of 60 Section 10, Items 2-4; also compare to p. 13 of 60, Section 10, Item 9 referring to "cosmetic damage" to linoleum in another unit's kitchen.) (See *also* Defs. Exh. 5, p. 13 of 60, Items 12 and 15 [recommending cracks in ceiling and walls of Plaintiff's Unit be repaired].) Dirty carpeting may be evidence of "dilapidation" and lack of maintenance of the flooring. The Giant Jims Inspection Report includes a photo of the damaged kitchen flooring in Plaintiff's Unit, copied below. (Defs. Exh. 5, p. 48 of 60.)



Plaintiff has raised a genuine dispute of fact regarding the timeliness and amount of her rent payments as to some of her rent payments, though not as to rent due in September and October 2023. (UMF 26.) In the face of a ledger maintained in the ordinary course of management of the Property by the property manager responsible for the collection and accounting for rent payments as well as specific testimony by Schlatter as to when she received Plaintiff's payments and the deficiencies (*see* Schlatter Decl. ¶¶ 15-31 and Defs. Exh. 18), Plaintiff makes a general statement that "there were only 3 instances when [she] did not pay the rent as of the first of the month," between September 2023 and April 2025, without identifying the dates or months, and that she "did not fail to timely pay" her rent "on each and every one" of dates given by month and year in UMF 26. (Pl. Resp. to UMF 26 [misciting Moore Decl. ¶ 9 but apparently intending to cite Moore Decl. ¶ 11].) She provides no dates or amounts of any of her payments.

Moore's statement in her declaration that she "did not fail to timely pay" her rent for September and October 2023 directly contradicts her admissions at her prior deposition that she had not timely and fully paid her rent for those

months. (Defs. Exh. 7 [Moore DT p. 217. Ll. 1-3, stating that on September 23, 2023 and October 23, 2023, it was fair to state that her rent was not fully paid on the first]; *D'Amico, supra*, 11 Cal.3d at 21 [statement in later declaration filed in opposition to motion for summary judgment that directly contradicts a clear admission in prior deposition testimony does not raise a triable issue of fact]; *Whitmire v. Ingersoll-Rand Co.* (2010) 184 Cal. App. 4th 1078, 1087 ["It is well established that 'a party cannot create an issue of fact by a declaration which contradicts his prior discovery responses.' [Citations omitted.] In determining whether any triable issue of material fact exists, the trial court may give 'great weight' to admissions made in discovery and 'disregard contradictory and self-serving affidavits of the party.' [Citation omitted.]"].) Moore has not validly disputed that her rent payments for September and October 2023 were untimely by not being paid by the first of the month.

While defendants argue that the Moore Declaration denying that she paid her rent payments late in the other months specified in UMF 26 is not substantial evidence (Moore Decl. ¶¶ 11, 12), the testimony of one witness has been held to constitute substantial evidence. (*Greenwich S.F., LLC v. Wong* (2010) 190 Cal.App.4th 739, 767-768 [though reversing a verdict granting lost profits as damages, court stated, "The testimony of one witness may provide substantial evidence. [Citation omitted.] Cancelled checks or official documentation of the costs incurred are not required to support the jury's award. The absence of such documentation goes to the weight of the evidence and the credibility of the witness. Those determinations are for the jury."].)

The Court cannot weigh the evidence or the credibility of testimony on a motion for summary judgment, as stated in the authorities cited above. Further, declaration evidence by a party to the action is not rejected because it is offered in support of the party's position; Defendants' argument that Moore's declaration is "self-serving" is an argument that has been rejected as founded on an outdated rule in which parties could not testify on their own behalf. (See *Oiye v. Fox* (2012) 211 Cal.App.4th 1036, 1049-1050 ["Modern courts have recognized that all evidence proffered by a party is intended to be self-serving in the sense of supporting the party's position, and it cannot be discounted on that basis. [Citations omitted.]"]; *Michaels v. Greenberg Traurig, LLP* (2021) 62

Cal. App. 5th 512, 526 [same].) Courts have sometimes characterized evidence offered in a declaration in opposition to a motion for summary judgment as "self-serving" and insufficient to raise a triable issue if the declaration statements directly contradict prior admissions by the declarant in a deposition or written discovery response. (*Harris v. Thomas Dee Engineering Co., Inc.* 2021) 68 Cal. App. 5th 594, 605 [citing among other decisions *Price v. Wells Fargo Bank* (1989) 213 Cal.App.3d 465, 482, overruled on other grounds in *Riverisland Cold Storage, Inc. v. Fresno-Madera Production Credit Assn.* (2013) 55 Cal.4th 1169, 1182].) (See also *D'Amico, supra*, 11 Cal.3d at 21 and *Whitmire, supra*, 184 Cal. App. 4th at 1087 cited above.)

Plaintiff has partially disputed UMFs 29 and 30 as set forth above, as to whether there was a valid basis for the first two of the notices to perform conditions or quit, as well as the smoking claim asserted as one of several bases for the third such notice. (Pl. Resp. to UMFs 29, 30.)

The Court also finds UMFs 34, 35, and 36 are either unsupported by moving parties' evidence or if supported, are disputed. Those UMFs can be considered unsupported by the evidence, in that defendants concede the proper rent as of August 23, 2023 for her Unit should have been \$2,069.34 and that the amount of rent the prior owner was charging exceeded what defendants believe was allowed under Civil Code § 1947.12. (UMF 37.) As a result, the rent of \$2,275 was also erroneous and exceeded the allowable increase from the true rent amount of \$2,069.34. The Court has sustained evidentiary objections to the portion of the Schlatter Declaration addressing the 9.2% increase (UMF 36) as not supported in the Schlatter Declaration. (*Compare to* UMF 42 and Schlatter Decl. ¶¶ 84-88.) Given the admitted error in the rent increase effective in May 2023 which then affected the correct rent figure for the ensuing rent increase in 2024, and the lack of an adequate foundation in Schlatter's declaration for the CPI index figures Schlatter used for the 2023-2024 and 2024-2025 increases, the Court finds UMFs 34, 35, 36 and 37 are either not adequately supported by defendants' evidence and/or genuinely disputed by Plaintiff.

C. Issues 1 and 2

Plaintiff's first and second causes of action allege tortious breach, and contractual breach, of the implied covenant of habitability, respectively (Issues

1 and 2). Moving parties contend that these causes of action fail because there is no proof of any "material defects" affecting "habitability" as alleged in the complaint that were not corrected within a reasonable time sufficient to cure the defect. Moving parties also contend the tortious breach cause of action (1st C/A) fails for lack of an independent tort.

Plaintiff alleges her habitability claims are based on "rodents/insects (para. 11). (Compl. ¶ 11.) She also alleges defendants violated Health & Safety Code § 17920.3 by allowing the Property "to contain general dilapidation and improper maintenance" and to be substandard "in every way" as defined by "applicable" statutes including that Health & Safety Code statute. (Compl. ¶ 13.)

1. Legal Background to Issues 1 and 2

"In addition to asserting a breach of the habitability warranty as a defense to an unlawful detainer action, a tenant may bring suit against the landlord for damages resulting from such breach. [Citations omitted.] The elements of such an affirmative claim are the existence of a material defective condition affecting the premises' habitability, notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages. [Citations omitted.]" (*Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal. App. 4th 1281, 1297.) A claim for breach of the implied warranty of habitability may be stated as a tort claim as well as a contract claim. (*Id.* at 1299 [in which Court held the complaint stated a claim for tortious violation/breach of warranty of habitability]; *Hjelm v. Prometheus Real Estate Group, Inc.* (2016) 3 Cal.App.5th 1155, 1168-1169 [citing *Erlach* and *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 918–919 as to tort cause of action for violation of the covenant of habitability, but holding in that case plaintiff pursued a cause of action for breach of habitability based on the contract and was entitled to attorneys' fees based on his contract claims].)

Moving parties cite *Quevedo v. Braga* (1977) 72 Cal. App. 3d Supp. 1, disapproved on other grounds *Knight v. Hallsthammar* (1981) 29 Cal. 3d 46, 55 n. 7, and assert that Plaintiff did not plead any tortious conduct so as to support the cause of action for tortious breach of the implied warranty of habitability. Plaintiff alleges in her first cause of action for tortious breach of the implied

warranty of habitability that Civil Code § 1941 and the common law impose a legal duty on the landlord to provide and maintain the premises in a habitable condition, and that defendants breached that duty. The Court in *Knight, supra*, also stated that, "At least in a situation where, as here, a landlord has notice of alleged uninhabitable conditions not caused by the tenants themselves, a landlord's breach of the implied warranty of habitability exists whether or not he has had a 'reasonable' time to repair. Otherwise, the mutual dependence of a landlord's obligation to maintain habitable premises, and of a tenant's duty to pay rent, would make no sense. [Citation omitted.]" (*Knight, supra*, 29 Cal.3d at 55 [emphasis added].)

In *Stoiber v. Honeychuck, supra*, 101 Cal.App.3d 903, the Court addressed a number of claims by the plaintiff arising out of alleged habitability issues where plaintiff was a tenant under a lease of residential premises. The Court differentiated between tort claims arising out of habitability defects and those based on contract. The Court held that the tenant could state tort claims against the landlord's property management agents related to habitability but not contract claims since the agents were not parties to the contract with the tenant. (*Id.* at 928-930.)

Civil Code § 1941 states: "The lessor of a building intended for the occupation of human beings must, in the absence of an agreement to the contrary, put it into a condition fit for such occupation, and repair all subsequent dilapidations thereof, which render it untenable, except such as are mentioned in section nineteen hundred and twenty-nine." Civil Code § 1941.1(a) states that "[a] dwelling shall be deemed untenable for purposes of § 1941 if it substantially lacks any of the following affirmative standard characteristics or is a residential unit described in Section 17920.3 or 17920.10 of the Health and Safety Code," and includes a list of items that would render the premises "untenable" if they were substantially lacking. (Civ. Code § 1941.1(a) [emphasis added].) As relevant to the allegations of the complaint and the evidence, those items include, but are not limited to, "plumbing . . . facilities . . . maintained in good working order," "a water supply . . . that produced hot and cold running water, furnished to appropriate fixtures," and "floors . . . maintained in good repair." (Civ. Code § 1941.1(a)(2), (3), and (8).)

Health & Safety Code § 17920.3 also alleged in the complaint states a building or dwelling unit is deemed substandard "in which there exists any of the following listed conditions that endangers the life, limb, health, property, safety, or welfare of the occupants," listing "structural hazards" which include "defective or deteriorated flooring" and plumbing "except plumbing that . . . has been maintained in good condition." (Health & Saf. Code § 17920.3(b)(2) and (e) [emphasis added].)

The Court in *Erlach, supra*, recognized that "the mere 'existence of a prohibited (uninhabitable) condition or other noncompliance with applicable code standards does not *necessarily* constitute a *breach* of the warranty of habitability.'" [Citation omitted.] Whether a particular defect of violation of a housing code constitutes a breach of the implied warranty of habitability depends on the severity and duration of the defect or violation. [Citation omitted.] [S]ubstantial noncompliance with applicable code standards could lead to a breach of the warranty of habitability." (*Erlach, supra*, 226 Cal.App.4th at 1298, n. 9 [italics in original, underscoring added].)

Erlach relied on the California Supreme Court's statements in *Green* regarding the habitability standard: "In most cases substantial compliance with those applicable building and housing code standards which materially affect health and safety will suffice to meet the landlord's obligations under the common law implied warranty of habitability. As the *Hinson* court observed: '[minor] housing code violations must be considered *de minimus* and will not entitle the tenant to reduction in rent' [Citation omitted.]" (*Green v. Superior Court of San Francisco* (1974) 10 Cal.3d 616, 637-638.)

2. Whether There Are Triable Issues as to Habitability and Repair of Defects Within A Reasonable Time

Moving parties in effect contend that the Giant Jims Inspection Report and the testimony of Jim Hicks establish there were no material defects at the Property or in Plaintiff's Unit affecting habitability within the standards and meaning of Civil Code § 1941.1 and Health & Safety Code § 17920.3. The Court finds that genuine disputes as to the material facts highlighted above, particularly with regard to the existence of dangerous, deteriorated flooring in Plaintiff's Unit and issues regarding her bathroom plumbing fixtures and mold. Plaintiff

admittedly complained about these issues in June 2023, she declares she reiterated her concerns orally to Randhawa on August 23, 2023 when he visited her apartment, she reiterated them again in the October 15, 2023 email, and she declares she continued to address the concerns orally after that. (Moore Decl. ¶¶ 6-8.) This evidence raises a triable issue of fact regarding at least those habitability defects and the failure of Randhawa to repair those items within a reasonable time.

The Giant Jims Inspection Report and Moore's deposition testimony indicate that the flooring in the threshold of the doorway between the living room and kitchen was deteriorated, as the photo from the Report shows. (Defs. Exh. 3 [June 2023 email from Moore], Exh. 5 [Giant Jims Inspection Report p. 48 with photo], Exh. 7 [Moore DT p. 62, l. 10 – p. 63, l. 10, p. 72, ll. 6-18, and p. 75, l. 1 – p. 76, l. 18; Exh. 12 [Moore email of October 15, 2023, citing mold, defective flooring, bathroom plumbing issues].) It is undisputed that Plaintiff contends she fell on September 25, 2023 and injured her wrist when her ankle boot/brace got caught at the threshold where the flooring is deteriorated. In a subsequent email on June 4, 2024, Plaintiff notably stated that she "still" has black mold in her apartment, and she refers to defects in the shower plumbing and a kitchen sink leak which she states "never got fixed." (Defs. Exh. 17.)

In reply, moving parties argue that the evidence shows Plaintiff's complaints in her October 15, 2023 email were addressed within approximately eight days, Plaintiff made no further complaints until June 4, 2024, and her June 4, 2024 complaints were addressed within approximately two weeks. (Reply, p. 4, ll. 14-20.) This summary ignores contrary evidence regarding the existence of flooring defects, plumbing issues, and unremedied mold cited in Plaintiff's June 2023 email, noted to some extent by the Giant Jims Inspection Report and the City report in June 2023 and August 2023, respectively, and Plaintiff's declaration testimony that she informed Randhawa directly on August 23, 2023 when he came to her apartment, such that these conditions arguably were noticed to Randhawa at least by August 23, 2023 and when unremedied until the end of October 2023.

Based on *Erlach, supra*, the Court recognizes that the extent to which defects in Plaintiff's Unit in fact breach the warranty of habitability is not necessarily

determined by the fact the defects constitute code violations or defects listed in Civil Code § 1941.1 and Health & Safety Code § 17920.3, and whether there has been a breach of the warranty of habitability depends on the "severity and duration" of the defects. (*Erlach, supra*, 226 Cal.App.4th at 1298, n. 9.) On summary judgment, the Court is required to liberally construe the evidence of the opposing party, and the Court is constrained from weighing the evidence or making credibility determinations regarding the evidence presented. Based on the standards governing summary judgment, the Court does not find it can determine as a matter of law based on the conflicting evidence that the severity and duration of the defects in Plaintiff's Unit do not constitute a breach of the implied warranty of habitability.

3. Whether Plaintiff Alleged Facts Supporting Tortious Breach

The Court in *Stoiber, supra*, held that the plaintiff tenant had adequately alleged a basis for tort liability of the landlord and its management agents where the tenant claimed the landlord had breached the implied warranty of habitability under the lease. The tort liability in that case included causes of action for negligent violation of a statutory duty under Civil Code § 1941.1 and nuisance based on substantial interference with her use and enjoyment of the premises as a result of the habitability defects. (*Stoiber, supra*, 101 Cal.App.3d at 911, 919-920, 922-925.) The plaintiff in that case did not allege a claim for "tortious" breach of the implied warranty of habitability. (*Id.*) In *Erlach, supra*, 226 Cal.App.4th 1281, the Court held that a tenant may maintain a tort action against a landlord for tortious breach of the warranty of habitability "for damages suffered by way of annoyance or discomfort or for injury to his personal property caused by the landlord's failure to keep the premises in a habitable condition." (*Id.* at 1298.) (See Compl. ¶¶ 21-23.) The Court described the elements of a breach of habitability claim, cited above, and noted that the tenant might have a statutory cause of action under Civil Code § 1942.4 which precludes a landlord from demanding, collecting, or increasing rent if there is a habitability defect cited by a public officer that is not remedied in 35 days, and that violation of a statute may constitute negligence per se. These allegations were the backdrop to the Court concluding that it "could not say as a matter of law" that the tenant's causes of action in the complaint in that case, including

the tortious breach of the implied warranty of habitability, was "not viable." (*Id.* at 1299.) Though the Court in this case has an evidentiary record, based on the conflicting evidence, the Court cannot say as a matter of law on this record that Plaintiff's claim for tortious breach of the implied covenant of habitability fails.

4. Undisputed Facts Demonstrate No Liability of Schlatter Defendants on Second Cause of Action

There is no dispute that defendant Randhawa purchased the Property subject to the Lease Agreement, and Thatte Randhawa Defendants are the current owners of the Property and in effect successors under the Lease Agreement. (Defs. Sep. Stmt., UMFs 1, 2, 5, and Pl. Resp. to UMFs 1, 2, 5.) There is also no dispute that defendant Schlatter and her company, defendant Schlatter Associates, Inc., acted as property managers and agents for the Randhawas as the property owners and landlords through their Trust. (Pl. Sep. Stmt. of Undisp. Mat. Facts [Addl. Facts] 28; Schlatter Decl. ¶¶ 2, 3, 5.) As a matter of law, the Schlatter Defendants cannot be held liable for breach of a contract to which they are not parties. (*Stoiber, supra*, 101 Cal.App.3d 903, 928-930; *Aljabban v. Fontana Indoor Swap Meet, Inc.* (2020) 54 Cal.App.5th 482, 509; *Egan v. Mut. of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 824.)

5. Conclusion as to Issues 1 and 2

There are triable issues of material fact precluding summary adjudication of Issues 1 and 2 and the first and second causes of action for tortious and contractual breach of the implied warranty of habitability against the Randhawa Defendants for the reasons stated above. The Court finds there are triable issues of material fact regarding the first cause of action as to all the moving parties, but the Court finds there are no triable issues and that the Schlatter Defendants are entitled to summary adjudication of the second cause of action in their favor as a matter of law.

D. Issues 3 and 4

Moving parties contend that the third cause of action for breach of contract fails because (1) Plaintiff breached the lease before any breach of the lease by defendants (Issue 3); and (2) Plaintiff cannot prove that defendants breached the lease (Issue 4).

1. Legal Framework

The essential elements of a cause of action for breach of contract are "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. [Citations omitted.]" (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) In *Green, supra*, 10 Cal.3d 616, the California Supreme Court held that "in keeping with the contemporary trend to analyze urban residential leases under modern contractual principles, we now conclude that the tenant's duty to pay rent is 'mutually dependent' upon the landlord's fulfillment of his implied warranty of habitability. [Citation omitted.] [¶] Once we recognize that the tenant's obligation to pay rent and the landlord's warranty of habitability are mutually dependent, it becomes clear that the landlord's breach of such warranty may be directly relevant to the issue of possession. If the tenant can prove such a breach by the landlord, he may demonstrate that his nonpayment of rent was justified and that no rent is in fact 'due and owing' to the landlord." (*Id.* at 635 [emphasis added].)

2. Whether There Are Triable Issues Regarding Plaintiff's Prior Material Breach and the Defendants' Breach of the Implied Warranty of Habitability

Though the Court finds Plaintiff has not genuinely disputed her untimely rent payments for the months of September 2023 and October 2023, the Court finds there are nevertheless triable issues as to whether the owners of the Property were in breach of the lease before September 2023 based on the unremedied repairs and defects affecting habitability as discussed above with respect to Issues 1 and 2 beginning August 23, 2023 and whether Plaintiff timely paid her rent in November 2023. Defendants' Exhibit 18 shows the unpaid rent balance was \$19.34 as of the end of September 2023 by the landlord's calculation. (Defs. Exh. 18.) Using the landlord's calculation of the rent deficiency as of November 6, 2023, the unpaid balance was \$584, and the Court cannot determine whether that deficiency represents a reasonable reduction based on the habitability defects Plaintiff asserts existed. The triable issues regarding habitability and the condition of the premises existing in September and October 2023, and whether some of the complaints she had regarding mold,

plumbing and other issues continued thereafter until at least June 2024, preclude the Court finding as a matter of law that Plaintiff's duty to pay rent was not limited in the September through November 2023 time frame based on the landlord's breach of the implied warranty of habitability. Further, under the case law cited above, a tenant may claim a breach of the implied warranty of habitability by the landlord even if the tenant is in default on payment of the rent. (*Knight, supra*, 29 Cal.3d at 55.)

3. No Liability of Schlatter Defendants for Breach of Contract

For the reasons set forth above as to the second cause of action, the Schlatter Defendants are not liable as a matter of law for the third cause of action for breach of contract based on the undisputed facts, as conceded by Plaintiff.

4. Conclusion as to Issues 3 and 4

The motion for summary adjudication of the third cause of action as to Schlatter and Schlatter Associates is **granted**. The motion for summary adjudication of the third cause of action and Issues 3 and 4 as to the Randhawa Defendants is **denied**.

E. Issue 5

Moving parties assert in Issue 5 that five causes of action of the complaint (4th C/A for breach of quiet enjoyment, 5th C/A for private nuisance, 6th C/A for premises liability, 7th C/A for negligence, and 10th C/A for violation of the Unfair Competition Law, Business & Professions Code § 17200, et seq.) all fail because they are based on a breach of duty to repair and provide a habitable unit alleged in the first through third causes of action. The Court has found triable issues of material fact on whether there were habitability problems with the Property and Plaintiff's Unit and whether defendants' breached their duty to repair the problems within a reasonable time with respect to Issues 1 and 2.

Defendants contend, within this one Issue 5, that the fourth and fifth causes of action fail because the breach of Plaintiff's quiet enjoyment and use of the premises must be "substantial." (*Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, 592 [minor inconveniences and annoyances not actionable]; *Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal.App.5th 248, 261-264 [substantial and unreasonable interference with use and enjoyment of

premises].) For the reasons set forth with regard to Issue 1, the Court cannot determine as a matter of law based on the conflicting evidence that the deficiencies in Plaintiff's Unit, which continued for over two months after the Randhawa Defendants acquired the Property, did not result in a "substantial" interference with her use and enjoyment of her Unit. The mold noted in the bathroom, issues with bathroom plumbing fixtures, and the broken flooring between the living room and kitchen affecting Plaintiff's access to the kitchen, including the refrigerator near the area of the broken flooring, which was a tripping hazard unremedied for two months after the Randhawas acquired the Property, may collectively be found by a trier of fact to have substantially and unreasonably interfered with Plaintiff's use and enjoyment of her Unit. As the Court concluded in *Mendez, supra*, "As is apparent from the above standards, the elements of substantial damage and unreasonableness necessary to making out a claim of private nuisance are questions of fact that are determined by considering all of the circumstances of the case. [Citation omitted.]" (*Mendez, supra*, 3 Cal. App. 5th 248, 263-264.)

As to the tenth cause of action for violation of the Unfair Competition Law, Business & Professions Code § 17200, *et seq.* ("UCL"), moving defendants contend that there is no evidence of any "unlawful, unfair, or fraudulent" business practices engaged in by moving defendants. "The UCL embraces 'anything that can properly be called a business practice and that at the same time is forbidden by law.' [Citations and internal quotations omitted.] . . . In addition, under Section 17200, 'a practice may be deemed unfair even if not specifically proscribed by some other law.' [Citation omitted.]" (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1143 [quoting *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180].) A claim for unfair business practices under the UCL by its terms may be asserted for practices that are either "unfair," "unlawful," or "fraudulent." (*Prakashpalan v. Engstrom, Lipscomb & Lack* (2014) 223 Cal.App.4th 1105, 1133 [statute written in the disjunctive].) For the reasons set forth above, Plaintiff has raised triable issues as to whether there were violations of the Civil Code and Health & Safety Code at her Unit and whether the defects were remedied within a reasonable time.

F. Issues 6 and 7

Moving defendants frame Issues 6 and 7, targeting the 6th cause of action for premises liability and seventh cause of action for negligence, as being without merit because there was no dangerous condition on the premises (Issue 6) and defendants did not have knowledge of any dangerous condition in her Unit (Issue 7).

1. Legal Framework

The elements of both negligence and premises liability are "a legal duty of care, breach of that duty, and proximate cause resulting in injury." (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) Generally, the breach and causation elements of these claims are "fact-specific issues for the trier of fact," while "the existence and scope of a duty are questions of law." (*Staats v. Vintner's Golf Club, LLC* (2018) 25 Cal. App. 5th 826, 832.) In *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200 ("*Ortega*"), the Court summarized what a plaintiff must prove to prevail on a claim for negligence and premises liability:

In order to establish liability on a negligence theory, a plaintiff must prove duty, breach, causation and damages. [Citations omitted.] A plaintiff meets the causation element by showing that (1) the defendant's breach of its duty to exercise ordinary care was a substantial factor in bringing about plaintiff's harm, and (2) there is no rule of law relieving the defendant of liability. [Citation omitted.] **These are factual questions for the jury to decide**, except in cases in which the facts as to causation are undisputed. [Citation omitted.]

Because the owner is not the insurer of the visitor's personal safety [citation omitted], **the owner's actual or constructive knowledge of the dangerous condition is a key to establishing its liability.** **Although the owner's lack of knowledge is not a defense**, "[t]o impose liability for injuries suffered by

an invitee due to [a] defective condition of the premises, the owner or occupier "must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition, **which if known to him, he should realize as involving an unreasonable risk to invitees on his premises . . .**" [Citation omitted.]"

(*Ortega, supra*, 26 Cal.4th at 1205 [emphasis added].)

Moving parties cite *Resolution Trust Corp. v. Rossmoor Corp.* (1995) 34 Cal.App.4th 93 for the proposition that conditions that can be avoided are not dangerous and do not impose a duty on a landlord to correct the condition. (MPA ISO Mot. p. 24, ll. 23-26.) In that case, the plaintiff sued the owner of a neighboring parcel for nuisance, trespass, and negligence based on contamination from a gas station operating on the defendant's parcel. (*Id.* at 98–99.) The Court of Appeal agreed the fuel leaks constituted a nuisance and held "[t]he defendant [landlord] must be aware of the specific dangerous condition and be able to do something about it before liability will attach." (*Id.* at 102.) *Rossmoor* holds that a landlord can be liable for a nuisance created by the tenant if there is a showing of negligence by the landlord in not discovering the nuisance. (*Id.* at 100-101.) The case has no application to the facts here where the tenant herself was injured by a dangerous condition on the landlord's property of which a trier of fact could conclude the landlord had actual or constructive notice based on the evidence.

The moving parties also argue that the condition of the flooring over which Plaintiff tripped was open and obvious such that the landlord owed no duty to warn Plaintiff of the danger or to remedy the danger, citing *Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4th 387, 393. The Court's complete statement of the law does not support moving parties' contention that the landlord had no duty to repair the dangerous flooring in Plaintiff's Unit. The Court explained, "Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition.

[Citation omitted.] However, this is not true in all cases. 'It is foreseeable that even an obvious danger may cause injury, if the practical necessity of encountering the danger, when weighed against the apparent risk involved, is such that under the circumstances, a person might choose to encounter the danger. The foreseeability of injury, in turn, when considered along with various other policy considerations such as the extent of the burden to the defendant and consequences to the community of imposing a duty to remedy such danger [citation] may lead to the legal conclusion that the defendant' owed a duty of due care to the person injured. [Citation omitted.]" (*Id.* at 393 [emphasis added].)

2. There Are Triable Issues as to Issues 6 and 7

The Court rejects the proposition that because the condition of the broken linoleum at the kitchen threshold was obvious and known, the landlord had no duty to repair the flooring. The evidence shows the broken flooring was at the threshold of the kitchen, requiring a person entering and exiting the kitchen to encounter the condition, and that the danger was a "tripping hazard" as characterized by the City report. Plaintiff alleges she tripped and fell over this broken flooring, a foreseeable injury from the foreseeable risk of tripping that the broken flooring posed. The City report designated the condition a "required" repair under the applicable code such that the landlord had a duty to remedy the condition.

There are clearly triable issues of fact as to whether, at a minimum, the broken kitchen flooring was a dangerous condition in her Unit of which Randhawa was or should have been aware through the Giant Jims Inspection Report, which he received before he purchased the Property, and based on Plaintiff's declaration attesting that she reiterated the problems with the flooring to Randhawa in person on August 23, 2023. This was not an ordinary slip and fall on a well-maintained floor; Plaintiff fell on broken linoleum that the City report specifically stated was a "tripping hazard," a characterization that is supported by the photograph of the broken kitchen flooring in the Giant Jims Inspection Report.

3. Conclusion as to Issues 6 and 7

There are triable issues of material fact precluding the Court from finding as a matter of law that, at a minimum, the broken flooring at the kitchen threshold was a dangerous condition, that defendants had actual or constructive notice of the dangerous condition through the Giant Jims Inspection Report and the City's property inspection report as well as Plaintiff's evidence regarding her informing Randhawa of the flooring defect in August 2023 after the sale closed, and that the landlord failed to exercise due care to repair the flooring within a reasonable time after such notice. The motion for summary adjudication of Issues 6 and 7 is **denied**.

G. Issues 8 and 9

Both of these issues challenge the merits of the eighth cause of action for violation of Civil Code § 1946.2, the just cause eviction statute. Among other things, Plaintiff alleges in her complaint that defendants retaliated against her for exercising her tenant rights by "wrongfully terminating" her tenancy, "unlawfully influencing or attempting to influence" Plaintiff to leave, and not notifying her of her rights. (Compl. ¶¶ 75-77.)

1. Legal Background

Civil Code § 1946.2, effective January 1, 2024, provides for "just cause" eviction of a tenant who has occupied a residential property for at least 12 months. (Civ. Code § 1946.2(a).) As relevant here, the statute defines "at fault just cause" as including a default in the payment of rent, a breach of a material term of the lease, or "maintaining, committing, or permitting the maintenance or commission of a nuisance as described in Section 1161 of the Code of Civil Procedure." (Civ. Code § 1946.2(b)(1)(A), (B), and (C).) Code of Civil Procedure § 1161 subpart 4 provides that a tenant "maintaining, committing, or permitting the maintenance or commission of a nuisance upon the demised premises or using the premises for an unlawful purpose, thereby terminates the lease."

Subsection (c) of the statute states, "Before an owner of residential real property issues a notice to terminate a tenancy for just cause that is a curable lease violation, the owner shall first give notice of the violation to the tenant with an opportunity to cure the violation pursuant to paragraph (3) of Section 1161 of the Code of Civil Procedure. If the violation is not cured within the time

period set forth in the notice, a three-day notice to quit without an opportunity to cure may thereafter be served to terminate the tenancy." (Civ. Code § 1946.2(c).) The statute further creates civil liability to the tenant for damages and potentially other relief if an owner "attempts to recover possession of a rental unit in material violation of this section." (Civ. Code § 1946.2(h).)

2. Whether There Are Triable Issues of Material Fact as to Issues 8 and 9

There is no dispute that Plaintiff's tenancy has not been terminated, and Plaintiff has not raised any genuine dispute that no unlawful detainer proceeding has been commenced against her to evict her from her Unit. (UMFs 31, 32; Pl. Resp. to UMFs 31, 32.) The Court has found that there are genuine factual disputes as to whether Plaintiff failed to pay the required rent (UMFs 26, 28; Pl. Resp. to UMFs 26, 28 [citing Moore Decl. ¶¶ 11, 12, 13]), and the Court finds whether the July 6, 2024 and December 12, 2024 three-day notices properly stated the amount of unpaid rent is in dispute, given defendants' admission that the rent was increased by too much in May 2023, resulting in a rent increase calculation that meant the rent amount was also excessive in 2024, which the landlord did not discover until 2025. (Schlatter Decl. ¶ 81.) The Court has also found there are genuine factual disputes as to whether at least the February 7, 2024 and March 3, 2025 notices to perform or quit stated a valid just cause basis for the notices, as Plaintiff disputes the allegations of smoking in those notices. (UMFs 29, 30; Pl. Resp. to UMFs 29, 30; Pl. AFs 41, 42.)

The issue presented is whether the landlord's three-day notices to pay or quit and three-day notices to perform or quit constitute "attempts" by the landlord "to recover possession" of Plaintiff's Unit without just cause. Defendants appear to contend that the notices to quit do not constitute attempts to recover possession of the premises, and only commencement of eviction proceedings may result in a violation of the statute. The position is contrary to the terms of the notices themselves which claim various breaches or violations of Plaintiff's obligations as a tenant under her lease and demand that she either pay the rent demanded, cease the violations, or leave. The notices demand Plaintiff turn over possession of the premises to the landlord if she fails to comply with the

demands of the owner within the time provided. (Defs. Exhs. 19-24.) The notices are attempts by the owner to recover possession of the premises under Civil Code § 1946.2(h). Whether they were issued with a valid "just cause" basis is genuinely disputed.

3. No Liability of Schlatter Defendants as Nonowners

By its terms, Civil Code § 1946.2(a) applies to restrictions on "an owner of residential real property." The Schlatter Defendants are agents of the owners, but not the owners. On the undisputed facts, the Schlatter Defendants are not liable under the statute, as Plaintiff has conceded.

4. Conclusion as to Issues 8 and 9

The notices issued by the landlord for payment of rent or compliance with the lease or for the tenant to "quit" the premises are attempts by the owner to recover possession of the premises under Civil Code § 1946.2(h). Whether they were issued with a valid "just cause" basis is genuinely disputed by the evidence cited above, precluding summary adjudication of these causes of action as to the Randhawa Defendants. The Schlatter Defendants, as nonowners and mere agents of the owners, are entitled to summary adjudication of the eighth cause of action in their favor as a matter of law. The motion for summary adjudication of the eighth cause of action against the Randhawa Defendants is **denied** and is **granted** as to the Schlatter Defendants.

H. Issue 10

Issue 10 addresses the ninth cause of action and whether there were violations of Civil Code § 1947.12 regarding the amount of Plaintiff's rent increases. Under that statute, rent increases are limited to the lesser of 10% of the rent in effect before the increase or 5% plus "the percentage change in the cost of living" during the 12 months before the effective date of the increase. (Civ. Code § 1947.12(a).) The statute prohibits "an owner of residential real property" from making an annual rent increase in excess of the amount allowed under the statute. (*Id.*) The applicable cost of living is defined in Civil Code § 1947.12(g) as the Consumer Price Index for All Urban Consumers ("CPI-U") for various metropolitan areas published by the United States Bureau of Labor Statistics, specifically the "CPI-U for the San Francisco-Oakland-Hayward metropolitan

area covering the Counties of Alameda, Contra Costa, Marin, San Francisco, and San Mateo." (Civ. Code § 1947.12(g)(1)(A)(iv).)

1. Triable Issues Regarding Violation of the Rent Increase Statute

The Court concludes admissions by defendants that the rent increase that went into effect in May 2023 was excessive under the statute, that defendants continued to require payment of the erroneous rent amount after the Randhawas became owners of the Property in August 2023, that the rent increase effective in May 2024 was calculated based on the prior (excessive) rent in effect from May 2023 through April 2024, and the property manager's conclusion later in 2024 that the rent increase effective in May 2023 was excessive all raise triable issues as to whether there was a violation of Civil Code § 1947.12. (Schlatter Decl. ¶¶ 67-73, 76-83.) The Court has sustained evidentiary objections to portions of the Schlatter Declaration in which she addresses her calculation of the rent increase in May 2024 but fails to provide evidence or other foundation for her unsupported statement of what the applicable CPI-U was (see Schlatter Decl. ¶¶ 67-73), in contrast to her testimony regarding the 2025 rent increase calculation (see Schlatter Decl. ¶¶ 86-88). Plaintiff has raised disputes as to UMFs 34-36, and the evidence on which UMFs 42 and 43 regarding the CPI-U increases are based is subject to valid evidentiary objections in part as set forth below.

2. No Liability for Schlatter Defendants as Nonowners

Civil Code § 1946.12 by its terms prohibits an owner of residential real property from making an excessive rent increase. The Schlatter Defendants are not owners, and they are not liable under the statute, as conceded by Plaintiff.

3. Conclusion as to Issue 10

For the reasons stated above, the triable issues and inadequate evidentiary support for the UMFs supporting Issue 10 preclude summary adjudication of the ninth cause of action against the Randhawa Defendants. The record shows triable issues of fact regarding the excess rent calculation for May 2023-May 2024, and May 2024 until December 2024 when the rent rate was recalculated. Summary adjudication of the ninth cause of action against the Randhawa Defendants is therefore **denied**. The Court **grants** summary adjudication of the

ninth cause of action in favor of the Schlatter Defendants as they are not liable on this cause of action as a matter of law based on the undisputed facts.

I. Issues 11 and 12

Plaintiff's complaint cites Civil Code §§ 1941.1 and 1942.5 and alleges defendants violated those statutes by failing and refusing to repair the defective conditions. § 1941.1 was addressed above in connection with Issues 1 and 2. Civil Code § 1942.5 provides in pertinent part: "If the lessor retaliates against the lessee because of the exercise by the lessee of the lessee's rights under this chapter or because of the lessee's complaint to an appropriate agency as to tenantability of a dwelling, and if the lessee of a dwelling is not in default as to the payment of rent, the lessor may not recover possession of a dwelling in any action or proceeding, cause the lessee to quit involuntarily, increase the rent, or decrease any services within 180 days" (Civ. Code § 1942.5(a).)

1. Triable Issues Exist as to Retaliation Based on the Notices to Quit and Alleged Unremedied Habitability Defects

As detailed above, the Court has concluded Plaintiff has raised triable issues with respect to the unremedied habitability defects which Plaintiff asserts in her declaration persisted from August 23, 2023 when the Randhawa Defendants purchased the Property through later than June 4, 2024 when she raised complaints again in her email of that date. The Court has concluded there are triable issues as to whether Plaintiff was in default in the timeliness of her rent payments in the months moving parties contend Plaintiff was late, except for September 2023 and October 2023, and that Plaintiff by her declaration has disputed that she violated the nonsmoking policy and pet policy, with her under oath denial that she ever smoked marijuana at her Unit or failed to clean up after her dog.

2 Schlatter Defendants Not Lessors

Civil Code §§ 1941.1 and 1942.5 prohibit certain conduct by a lessor. The undisputed facts show that the Schlatter Defendants are not the lessors under Plaintiff's lease and were acting merely as property management agents for the owners the Randhawa Defendants. The Schlatter Defendants are not liable for

violations of these statutes as a matter of law, as Plaintiff has conceded.

3. **Conclusion as to Issues 11 and 12**

For the reasons stated above, the triable issues preclude summary adjudication of the eleventh cause of action in favor of the Randhawa Defendants. Summary adjudication of the eleventh cause of action as to the Randhawa Defendants is therefore **denied**. The Schlatter Defendants are not lessors under the statutes on which the eleventh cause of action is based, and summary adjudication of the eleventh cause of action against the Schlatter Defendants is **granted**.

Evidentiary Objections

Moving Defendants and Plaintiff have filed evidentiary objections. The Court rules on those objections the Court finds are material to its ruling. (Code Civ. Proc. § 437c(q).)

A. Defs. Obj. to Pinza Decl.

Obj. Nos. 1-3 - **Overruled**. Paragraph 1 and the preceding sentence in paragraph 3 states the company of which declarant is the Managing Broker turned over all documents as the company representing the seller of the Property.

Obj. Nos. 4-9 – **Sustained**. There is no evidence that Pinza was involved in any activity by Megem, LLC in turning over its records to Randhawa, or foundation for Pinza's knowledge of what records Megem, LLC in fact turned over, or how Pinza had knowledge of any actions taken by Randhawa regarding workers at the Property post-sale.

B. Defs. Obj. to Moore Decl.

Obj. No. 10 – **Overruled**. Plaintiff is submitting her own declaration attesting to what she informed Randhawa about on August 23, 2023. The foundation is laid by the fact Plaintiff is the tenant at the Unit and makes her statements from her personal knowledge.

Obj. Nos. 11, 12, 13, 15 – **Overruled**. Plaintiff provides a time frame for her oral complaints to Randhawa. Objections to statements in paragraph 9 and subsequent paragraph objected to go to the weight of the evidence, not its admissibility.

Obj. No. 14 – **Sustained.**

Obj. No. 16 – **Sustained.** Relevance. *See, e.g.,* Defs. Exh. 15 [Lease ¶¶ 46 [Waiver of Breach]. 48 [Entire Agreement].)

C. Pl. Obj. to Randhawa Decl.

Obj. Nos. 1, 3, 4, 5, 6, 7, 8, 12 – **Overruled.**

Obj. No. 2 – **Sustained in part** to the extent the statement refers to whether Randhawa's wife or the property manager were notified.

Obj. No. 9 – **Sustained** only as to "which confirmed THC in Plaintiff's unit." (See also Ruling on Pl. Obj. to Defs. Exh. 27 below.)

Obj. Nos. 10, 11, 13 – **Sustained.**

D. Pl. Obj. to Schlatter Decl.

Obj. Nos. 14, 15, 16, 17 – **Overruled.** That Plaintiff as of April 25, 2025 may have been considered "up to date" on her rent payments as of the deposition date, and that the landlord may have waived, or deemed uncollectible, certain rent payments due in 2024 at the time Schlatter testified in April 2025 does not contradict, directly or otherwise, her statement that Plaintiff failed to make her rental payment that came due on September 1, 2023, October 1, 2023, and November 1, 2023 and was delinquent in her rent payments on November 20, 2023.

Obj. No. 18 – **Overruled.** That Plaintiff as of April 25, 2025 may have been considered "up to date" on her rent payments as of the deposition date, and that the landlord may have waived, or deemed uncollectible, certain rent payments due in 2024 at the time Schlatter testified in April 2025 does not contradict, directly or otherwise, her statement that Plaintiff failed to "timely pay in full when it came due on the first of the month" her rent for the months specified, including in April 2025. The statement clearly could not contradict Schlatter's statement that she failed to pay her rent in full when it came due on the first of the month for months post-dating April 25, 2025, including June 2025, October 2025, December 2025, and January 2026.

Obj. Nos. 19, 20, 23, 26, 27, 28, 29, 30, 33 – **Overruled.**

Obj. Nos. 21, 22 – **Sustained in part**, to the extent offered for the truth of the

fact marijuana smoke was emanating from Plaintiff's apartment or that Plaintiff was using marijuana but **overruled** to the extent offered only to state that tenants complained to Schlatter alleging marijuana smoke was coming from Plaintiff's Unit or Plaintiff was using marijuana.

Obj. No. 24 – **Sustained**.

Obj. No. 25 – **Sustained in part** to the extent offered for the truth of the content of the police report but **overruled** as to the fact Plaintiff's neighbor gave Schlatter a copy of a February 20, 2025 police report of the City of San Pablo Police Department reporting a smell of marijuana, which provides foundation and explanation for paragraph 44 regarding Schlatter's issuance of a three-day notice to cure or quit.

Obj. Nos. 31, 32 – **Sustained** for lack of foundation as to the applicable CPI and CPI data.

Obj. No. 34 – **Overruled**. That Plaintiff as of April 25, 2025 may have been considered "up to date" on her rent payments as of the deposition date, and that the landlord may have later waived, or deemed uncollectible, certain rent payments due in 2024 at the time Schlatter testified in April 2025 does not contradict, directly or otherwise, her statement that Plaintiff had an outstanding unpaid rent balance as of December 2, 2024.

Obj. No. 35 – **Sustained**. The declarant's statement as to the unpaid outstanding balance of \$2,017.70 as of January 30, 2026 when the Schlatter Declaration was made appears to be taken from the last line of the Rent Ledger, Exhibit 18, which shows a balance of \$1,748.58 after application of Plaintiff's April 2025 rent payment to the then-outstanding running balance. Schlatter's deposition testimony that Plaintiff was "up to date in terms of her rent payments" as of April 25, 2025 when her deposition was conducted and that the defendants can "no longer collect" unpaid rent payments or the delinquent balance from 2024 does contradict the ending balance which was apparently generated based on a balance owed as of April 2025 of \$1,748.58, contrary to the testimony that Plaintiff was "up to date" as of April 2025.

E. Pl. Obj. to Martinez Decl.

Obj. No. 36 – **Overruled.**

Obj. No. 37 – **Sustained.** Relevance.

F. Pl. Obj. to Giant Jims Inspection Report

Obj. No. 38 – **Overruled.** Hicks appeared at the deposition as the PMQ of the company that authored the report. Authenticity and admissibility of the report is adequately established, including based on Plaintiff's extensive reliance on the content of the report to oppose the motion. (See Evid. Code. §§ 1400, 1410, 1271; *Hooked Media Group v. Apple, Inc.* (2020) 55 Cal.App.5th 323, 337-338, rev. den. by *Hooked Media Group v. Apple Inc.* (Dec. 30, 2020) 2020 Cal. LEXIS 8983 ["As with any other fact, the authenticity of a document can be established by circumstantial evidence."].)

G. Pl. Obj. to Defs. Exh. 18 (Rent Ledger)

Obj. No. 39 – **Sustained in part** as to the ending balance but otherwise **overruled.** Business records exception. (Evid. Code § 1271.) Foundation is laid in Schlatter's Declaration, and the information in the ledger is supported by other evidence in the Schlatter Declaration. (See Schlatter Decl. ¶¶ 8, 9, 10-31.) Testimony by Schlatter at her April 25, 2025 deposition that the owners or property manager may have waived collection of prior rent or that they believed they could not legally collect rent outstanding for 2023 and 2024 does not make the records of the timing and amount of rent payments recorded in the ledger irrelevant, untrue or unreliable, nor does Schlatter's deposition testimony directly contradict the timing and amount of payments in the ledger, except that the ending balance is contradicted as it is based on a balance due as of the end of 2024 that Schlatter in effect testified was no longer considered owing. Plaintiff's objections go the weight of the evidence of the ledger, not its admissibility.

H. Pl. Obj. to Defs. Exh. 27 (THC Report)

Obj. No. 40 – **Sustained.**